Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, May 17, 2021 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Land Acknowledgement

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Announcement

On behalf of Council, Mayor Collier acknowledged Shane Baker, Chief Administrative Officer, as a recipient of the Canadian Association of Municipal Administrators' Long Service Recognition Award Program for his twenty years of municipal service in a management role.

3. Adoption of the Minutes

Moved by: R. Tyler Morin
Seconded by: A. Khan

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of April 19, 2021;
- Closed Session Meeting of April 19, 2021;
- Regular Meeting of April 21, 2021; and
- Closed Session Meeting of April 21, 2021

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Alexander Harras, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

5. Delegations and Presentations

5.1 Proclamation: Personal Support Worker (PSW) Day – May 19, 2021

Lynn Steele, founder of The Canadian PSW Network, provided an overview of the registered not-for profit organization including supports and resources available to Personal Support Workers in all communities across Ontario.

Council Members expressed their appreciation and commended the hard work of Personal Support Workers.

Mayor Collier presented the proclamation certificate and proclaimed May 19, 2021 as Personal Support Worker (PSW) Day in the Town of Ajax.

5.2 Proclamation: World Sickle Cell Day – June 19, 2021

Ika Washington, Sickle Cell Awareness Group of Ontario, delivered a presentation on World Sickle Cell Day. I. Washington provided an overview of the Sickle Cell Awareness Group of Ontario, characteristics of sick cell disease, sickle cell trait, and sickle cell disease and sickle cell trait statistics in Ontario and Canada. I. Washington discussed recognition, education and awareness, reducing stigma and discrimination, Sickle Cell Day in Ontario initiatives, and resources available.

Council Members asked if patients with sickle cell disease are at higher risk for COVID-19. I. Washington responded to questions from Council Members.

Mayor Collier presented the proclamation certificate and proclaimed June 19, 2021 as World Sickle Cell Day in the Town of Ajax.

5.3 Proclamation: International Day Against Homophobia, Transphobia and Biphobia – May 17, 2021

Jake Farr, PFLAG Canada Durham Region, delivered a presentation regarding International Day against Homophobia, Transphobia and Biphobia. J. Farr discussed PFLAG's land acknowledgement, the PFLAG Durham Region organization, history of International Day against Homophobia, Transphobia and Biphobia, history of the Pride Flag, social change in the workplace and community, inclusion and equity, and public education and awareness.

Members of Council asked questions regarding educational resources and tools. J. Farr responded to questions from Council Members.

Mayor Collier presented the proclamation certificate and proclaimed May 17, 2021 as International Day Against Homophobia, Transphobia and Biphobia in the Town of Ajax.

5.4 **Proclamation: National AccessAbility Week 2021**

Julia Stevenson, Ajax Accessibility Advisory Committee (AAC) Member, discussed the mandate of the AAC, the importance of National AccessAbility Week, pandemic influences, and accessibility awareness and education. J. Stevenson reviewed interactive virtual events and activities occurring during National AccessAbility Week in the Town of Ajax.

Mayor Collier presented the proclamation certificate and proclaimed May 30 – June 5, 2021 as National AccessAbility Week 2021 in the Town of Ajax.

5.5 **Proclamation: June is Aging Well Month**

Robert Prochilo, Community Recreation Coordinator – Senior Programs & Services, discussed community engagement opportunities, new initiatives and impacts from the pandemic. R. Prochilo noted that June marks the 37th anniversary of Seniors Month in Ontario, coined Aging Well Month, and reviewed upcoming events and activities for the month of June.

Council Members asked questions regarding public communication tools. R. Prochilo responded to questions from Council Members.

Mayor Collier presented the proclamation certificate and proclaimed June 2021 as Aging Well Month in the Town of Ajax.

6. Correspondence

Members separated correspondence items 6.1, 6.3, and 6.5 for discussion.

Moved by: L. Bower
Seconded by: J. Dies

That the balance of the report (Items 6.2, 6.4, 6.6, 6.7, 6.8, 6.9, 6.10, 6.11, 6.12, 6.13, 6.14 and 6.15) dated May 17, 2021 containing Items of Correspondence be received for information.

CARRIED

Item 6.1

Council Members acknowledged Guyana Independence Day on May 26, 2021 and provided an overview of Guyana's independence from the United Kingdom.

Moved by: A. Khan
Seconded by: S. Lee

That Item 6.1 ("Town of Ajax: Proclamations issued by the Mayor's Office") of the Correspondence Report be received for information.

CARRIED

Items 6.3 and 6.5

Council Members discussed the motions, noting that they support Asian residents and are against anti-Asian hate. Mayor Collier noted that May 20, 2021 is Asian Gold Ribbon Day.

Moved by: S. Lee
Seconded by: L. Bower

That Items 6.3 ("Region of Durham – Anti Asian Hate") and 6.5 ("City of Pickering – Stop Asian Hate") of the Correspondence Report be received for information.

CARRIED

7. Reports

7.2 General Government Committee Report

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the General Government Committee Report dated May 10, 2021, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: S. Lee
Seconded by: J. Dies

That the Summary of Advisory Committee Activities Report dated May 17, 2021, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

8. Regional Councillors' Report

Regional Council Members noted that the Canadian National Exhibition (CNE) has moved from an in-person platform to a virtual platform due to the pandemic, and advised of appointment of Ajax Council Members to the Durham Regional Local Planning Housing Corporation Committee and the Business Advisory Centre Durham (BACD) Board of Directors. Members noted that the Durham Region Anti-Racism Task Force will collaborate with task forces within the Region to work towards the elimination of systemic racism in Durham Region.

Moved by: M. Crawford
Seconded by: J. Dies

That the Regional Councillors' Reports of May 17, 2021 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

9.1 Great Lakes and St. Lawrence Cities Resolution

Mayor Collier and Regional Councillor Dies introduced the motion and reviewed its contents. Mayor Collier responded to questions on the motion from Council Members.

Moved by: S. Collier
Seconded by: J. Dies

WHEREAS the Town of Ajax remains committed to our decades-long tradition of environmentalism and advocacy on behalf of water quality as a proud Great Lakes community, and active member of the Great Lakes and St. Lawrence Cities Initiative, a binational coalition of 131 U.S. and Canadian Mayors and local officials working to advance the protection and restoration of the Great Lakes and St. Lawrence River;

AND WHEREAS Council identified advocacy for tertiary treatment at the Duffins Creek Water Pollution Control Plant (WPCP) as a priority in the 2018-2022 Strategic Plan;

AND WHEREAS Ajax's nearshore continues to be threatened by nuisance algae overgrowth, which has huge tourism and resident enjoyment consequences over the long-term, clogs water intake pipes and causes negative impacts to fish habitat;

AND WHEREAS projected impacts of climate change and urban growth, including the potential "Lake Ontario" solution for wastewater as the result of growth in York Region identified by Minister Yurek in his letter to York Region dated July 2020, (formerly identified for an "Upper York Sewage Solution") are expected to make these cladophora algal blooms worse as Lake Ontario water temperature increases and algal growth seasons are extended;

AND WHEREAS several guiding documents including the Province of Ontario's Made-in-Ontario Environment Plan, Ontario's Great Lakes Strategy, and Canada-Ontario Great Lakes Agreement (COA) specifically identify the need for action to restore and protect the Great Lakes, which include phosphorus concentration and loading targets, as well as addressing both harmful and nuisance algae;

AND WHEREAS the investigation completed by Dr. Auer, funded by the Town of Ajax, has identified the Duffins Creek WPCP as causing the nuisance cladophora blooms in the Lake Ontario nearshore due to increased phosphorus concentrations;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council reaffirms its commitment to water quality and protection of our nearshore;

2. Staff be directed to develop a resolution for submission to the Great Lakes and St. Lawrence Cities Initiative for their consideration, seeking provincial and federal cooperation and funding to:

    a. Formally acknowledge the triggers of *Cladophora* blooms and how to prevent it;

b. Develop and implement Phosphorus Reduction Action Plans/algae mitigation strategies for all Great Lakes, including Lake Ontario;

c. Implement tertiary treatment for wastewater to mitigate nutrients, protect habitat and enhance biodiversity;

d. Implement green infrastructure and conserve and restore existing wetlands to improve water quality and mitigate impacts of stormwater; and

3. This motion be distributed to Rt. Hon. Justin Trudeau, Prime Minister of Canada; Hon. Jonathan Wilkinson, Minister of Environment and Climate Change; Hon. Mark Holland, MP for Ajax; Hon. Doug Ford, Premier of Ontario; Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks; Rod Phillips, MPP for Ajax; Great Lakes and St. Lawrence Cities Initiative Executive Director and Board of Directors.

CARRIED

9.2 **Support Local Procurement Policy**

Mayor Collier and Councillor Tyler Morin introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: R. Tyler Morin

WHEREAS the COVID-19 pandemic has had a substantive impact on business due to closures and restrictions, and local governments are compelled to take action to support their recovery wherever feasible;

AND WHEREAS there are over 2,500 businesses in the Town of Ajax, contributing approximately $8.0 million in annual property taxes to the Town;

AND WHEREAS the Town is bound by both national and provincial legislation and international trade agreements, requiring fair and open processes for the purchase of all public sector goods, greatly restricting the ability to adopt local preference policies;

AND WHEREAS the Town's Purchasing By-Law permits local or regional priority to be given only in cases of a "tie breaker" scenario when all other factors are equal, in line with other major municipalities including Ottawa and Hamilton;

AND WHEREAS the Cities of London, Thunder Bay and Toronto have implemented specific purchasing policies for the purchase of local food and beverage for their municipal facilities, events and other needs;

AND WHEREAS the Region of Peel's purchasing guidelines require all municipal bid opportunities to be posted in local papers and on the municipality's website for ease of access by local businesses;

AND WHEREAS the Cities of Toronto, Hamilton and Windsor have implemented "social procurement" policies, encouraging the achievement of strategic social, economic and workforce development goals through their procurement process;

AND WHEREAS the provincial Infrastructure for Jobs and Prosperity Act permits the promotion of community benefits through infrastructure like "local job creation and training opportunities… improvement of public space within the community, and any specific

benefits identified by the community";

AND WHEREAS the provincial Broader Public Sector Purchase guidelines permit the addition of a "value add" section to bid documents for consideration as part of the assessment criteria;

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to undertake a review of the Town's purchasing policies and by-law to recommend enhancements to local preference that are legally defensible, including with consideration to innovative policies that may not be widely adopted across Ontario municipalities like social procurement or community benefit policies;

2. Staff be directed to review the ability to add a "value add" section in all bid documents so that prospective vendors are able to provide additional details and incentives to be considered as part of the entire proposal, in line with the provincial Broader Public Sector Purchase guidelines;

3. Staff be directed to review the ability for all purchases under $5,000 made by staff to be directed to local or regional vendors where feasible;

4. Staff be directed to obtain a legal opinion to ensure that any potential recommendations are not contrary to the Town's international or national trade obligations, or in contravention of any provincial legislation; and

5. Staff be directed to report back to Council or the appropriate Standing Committee by November 2021 with options for implementation in 2022.

CARRIED

9.3 **2021 Census Support**

Mayor Collier and Councillor Khan introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: A. Khan

WHEREAS accurate and complete census data supports our community by providing demographic information that can be used to improve our programming, services, community planning (locally and regionally), economic development, and funding;

NOW THEREFORE BE IT RESOLVED that Ajax Council supports the 2021 Census, and encourages all residents to complete their census questionnaire online at www.census.gc.ca.

CARRIED

Mayor Collier resumed the Chair.

9.4 **Respecting Gender Identification and Expression**

Councillor Bower and Councillor Tyler Morin introduced the motion and reviewed its contents.

Moved by: L. Bower
Seconded by: R. Tyler Morin

WHEREAS the Canadian Human Rights Act as well as the Ontario Human Rights Code prohibit discrimination and harassment because of gender identity or expression in employment, facilities and services, contracts, memberships, etc.;

AND WHEREAS the Town of Ajax approved an internal Gender Identity and Gender Expression Policy in October 2016 to ensure a safe and inclusive environment for employees, customers, service providers, etc.;

AND WHEREAS gender identity is each person's internal and individual experience of gender. It is their sense of being a woman, a man, both, neither, or anywhere along the gender spectrum. A person's gender identity may be the same as or different from their birth-assigned sex. Gender identity is fundamentally different from a person's sexual orientation;

AND WHEREAS gender expression is how a person publicly presents their gender. This can include behaviour and outward appearance such as dress, hair, make-up, body language and voice. A person's chosen name and pronoun are also common ways of expressing gender;

AND WHEREAS learning about the needs of transgendered people and gender non-conforming individuals, looking for barriers, developing or changing policies and procedures and undertaking training will help make sure we are actively respecting all individuals, treating everyone with the dignity they deserve, and taking steps to prevent discrimination;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council affirms its support of transgendered people and gender non-conforming individuals, and commitment to gender inclusivity accommodations to eliminate barriers;

2. The Manager of HR Services and Diversity and Inclusion Coordinator be directed to review the Town's internal Gender Identity and Gender Expression Policy and update the policy as necessary to ensure it remains reflective and responsive to the rights and needs of transgender and gender non-conforming individuals;

3. The Diversity and Inclusion Coordinator be directed to develop a Gender Identity and Gender Expression Action Plan to implement short-term gender inclusivity accommodations such as:

    - reviewing all Town application processes and collection of personal information to determine requirement for gender identification information and updating as necessary;

- introducing a gender pronoun awareness initiative to educate Council and employees on the importance of pronouns and ways pronouns can be used at work;

- conducting gender inclusivity training for all staff; and

- examining facility infrastructure needs including signage to support the Town's Positive Spaces Program.

CARRIED

Recorded Vote

In Favour: Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier

Opposed: None

9.5 **Westney Road Noise Study**

Regional Councillor Crawford and Councillor Tyler Morin introduced the motion and reviewed its contents.

Main Motion

Moved by: M. Crawford
Seconded by: R. Tyler Morin

WHEREAS resident safety is of the utmost concern to Ajax Council;

AND WHEREAS continued resident feedback has identified the area of Westney Road between Highway 2/Kingston Road and Ravenscroft Road as becoming more noisy, and observed traffic speeds increasing;

NOW THEREFORE BE IT RESOLVED THAT:

Ajax Council request that The Region of Durham initiate a weekend-to-weekend noise pollution study and speed study for the portion of Westney Road between Highway 2/Kingston Road and Delaney Drive in the Town of Ajax; and

That this motion be distributed to Durham Region Works Committee for consideration.

CARRIED

10. By-laws

Moved by: S. Lee
Seconded by: L. Bower

That By-law numbers 31-2021 to 32-2021 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

There were no notices of motion.

12. New Business - Notices & Announcements

Members of Council highlighted upcoming events and activities including a community Ward 1 meeting on May 25, 2021, noting that members of Durham Regional Police Service will be in attendance to discuss community safety.

13. Confirming By-Law

Moved by: J. Dies
Seconded by: A. Khan

That By-law number 33-2021 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on May 17, 2021 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the May 17, 2021 meeting of the Council of the Town of Ajax be adjourned (8:20 p.m.)

CARRIED

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Mayor

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D-Clerk